

		fraud cause of action, which is adequately pleaded. (Civ. Code §3294(a).) Defendants argue that the SAC fails to plead that any officer, director, or managing agent of LaserAway knew of, authorized, or ratified the specific conduct at issue, or personally engaged in the act of oppression, fraud or malice. (Civ. Code §3294(b).) The Court finds the allegations of the SAC sufficient. "Ratification is a fact question and may be proved by circumstantial evidence." (<i>Siva v. Gen. Tire & Rubber Co.</i> (1983) 146 Cal.App.3d 152, 159.) The SAC alleges that LASERAWAY made false statements on its website and social media, and through its employees Elizabeth Stump, Christa Reed, Nancy Dorado, Jennifer Salgado, Leah Becker, and Megan Martinez." SAC ¶ 68. These allegations—that company advertising and no less than six employees repeated the same fraudulent statements—is sufficient to create an inference that the statements were made in support of a company policy created or authorized by a managing agent. (<i>See Ibid.</i> ("Regardless of his official title, a managing agent is an individual who has the discretion to act in `... a managerial capacity ... [by] making decisions that will ultimately determine corporate policy.'")) The motion to strike is DENIED. Plaintiff is ordered to give notice of this ruling.
13	Morton v. Volkswagen Group of America, Inc.	O/C
14	Sanchez v. 2J's Lounge	O/C
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